



United States
Attorney's Office
District of Massachusetts



Former New York Doctor Sentenced for Receiving Kickbacks

Friday, December 12, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A New York doctor has been sentenced in federal court in Boston for receiving kickbacks in exchange for ordering medically unnecessary brain scans.

Dr. Kenneth Fishberger, 76, of East Setauket, N.Y. was sentenced on Dec. 9, 2025 by U.S. District Court Judge Nathaniel M. Gorton to two years of supervised release, one year of which will be served in home confinement with location monitoring. He also was ordered to pay a fine of \$50,000, forfeiture in the amount of \$48,000 and restitution of \$342,876. In November 2024, Fishberger pleaded guilty to one count of conspiracy to commit health care fraud.

Fishberger, an internist in Long Island, N.Y., was a licensed medical doctor in the State of New York for approximately 47 years. From approximately June 2013 through December 2019, Fishberger conspired with others, including a principal for a mobile medical diagnostics company that performed transcranial doppler (TCD) scans, to order hundreds of medically unnecessary TCD scans in exchange for kickbacks. TCD scans are brain scans that measure blood flow in parts of the brain. Fishberger and his alleged co-conspirators used false diagnoses to order the unnecessary brain scans, for which a co-conspirator would submit claims to Medicare and other insurance companies, including private insurance companies, on behalf of the medical diagnostic company for payment. In exchange, Fishberger was paid cash kickbacks of approximately \$100 per test. The scheme resulted in fraudulent bills of approximately \$891,978 to Medicare and private insurance companies.

United States Attorney Leah B. Foley; Roberto Coviello, Special Agent in Charge of the U.S. Department of Health and Human Services, Office of Inspector General; Ted E. Docks, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; Thomas Demeo, Special Agent in Charge of the Internal Revenue Service's Criminal Investigation Division, Boston Field Office; Kelly M. Lawson, Acting Regional Director of the U.S. Department of Labor, Employee Benefits Security Administration, Boston Regional Office; Nicholas Bucciarelli, Acting Inspector in Charge of the U.S. Postal Inspection Service, Boston Division; and Christopher Algieri, Special Agent in Charge of the U.S. Department of Veterans Affairs

Office of Inspector General, Northeast Field Office made the announcement. Assistant U.S. Attorney Mackenzie Queenin, Chief of the Health Care Fraud Unit, prosecuted the case.

Updated December 12, 2025

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